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Dilectissima Nobis (June 3, 1933)

DILECTISSIMA NOBIS

ENCYCLICAL OF POPE PIUS XI ON OPPRESSION OF THE CHURCH OF SPAIN TO THE EMINENT CARDINALS: FRANCISCO VIDAL Y BARRAQUER, ARCHBISHOPS OF TARRAGONA, EUSTAQUIO ILUNDAIN Y ESTEBAN, ARCHBISHOPS OF SIVILLE, AND THE OTHER ARCHBISHOPS AND BISHOPS AND ALL THE CLERGY AND PEOPLE OF SPAIN.

Venerable Brethren, Health and Apostolic Benediction.

Always extremely dear to Us has been the noble Spanish Nation for its exemplary benevolence toward the Catholic Faith and Christian civilization, for its traditional and ardent devotion to this Holy Apostolic See, for its great institutions and apostolic works, being the fecund mother of Saints, missionaries and founders of illustrious religious Orders, the pride and support of the House of God. It is precisely because the glory of Spain is so intimately connected with the Catholic Religion that We feel doubly afflicted in witnessing the deplorable endeavors that for some time have been continually repeated to deprive this beloved nation, with her traditional faith, of her most beautiful titles of civil grandeur. We did not fail - as Our paternal heart dictated - to point out often to the present Government of Spain how false was the way they followed, and to remind them how it is not by wounding the soul of a people in their most profound and dearest sentiments that they can reach that harmony of spirits which is indispensable for the prosperity of the nation. This We did through Our representative every time a new danger appeared of some new law or measure prejudicial to the sacrosanct rights of God and of souls. Nor did We fail to add also the publication of Our paternal words to Our beloved children the clergy and laity of Spain, so that they might know Our heart was nearer to them in these grievous moments.

2. But We cannot fail to raise Our voice against the laws lately approved, "Relating to religious Confessions and Congregations," which constitute a new and graver offense not only to Religion and the Church, but also to those declared principles of civil liberty on which the new Spanish regime declares it bases itself.

3. Nor can it be believed that Our words are inspired by sentiments of aversion to the new form of government or other purely political changes which recently have transpired in Spain. Universally known is the fact that the Catholic Church is never bound to one form of government more than to another, provided the Divine rights of God and of Christian consciences are safe. She does not find any difficulty in adapting herself to various civil institutions, be they monarchic or republican, aristocratic or democratic. Speaking only of recent facts, evident proof of this lies in the numerous Concordats and agreements concluded in later years, and in the diplomatic relations the Holy See has established with different States in which, following the Great War, monarchic governments were succeeded by republican forms. Nor have these new republics ever had to suffer in their institutions and just aspirations toward national grandeur and welfare through their friendly relations with the Holy See, or through their disposition, in a spirit of reciprocal confidence, to conclude conventions on subjects relating to Church and State, in conformity with changed conditions and times. Nay, We can with certainty affirm that from these trustful understandings with the Church the States themselves have derived remarkable advantages, since it is known no more effective dyke can be opposed to an inundation of social disorders than the Church, which is the greatest educator of the people and always knows how to unite, in fecund agreement, the principle of legitimate liberty with that of authority, the exigencies of justice with welfare and peace.

4. The Government of the new Republic could not be ignorant of all this. Nay, it knew well Our good disposition, and that of the Spanish Episcopate, to concur in maintaining order and social tranquillity. With Us was in harmony the immense multitude not only of the clergy both secular and regular, but likewise of the Catholic laity, or, rather, the great majority of the Spanish people, who, notwithstanding their personal opinions and provocations and vexations by adversaries of the Church, kept themselves aloof from acts of violence and reprisals, in tranquil subjection to the constituted power, without having to resort to disorder and much less to civil war.

5. Certainly to no other causes than to this discipline and subjection inspired by Catholic teachings and spirit have we

the right to attribute the possibility of maintaining some peace and public tranquillity while the turbulence of parties and the passions of revolutionaries worked to propel the nation toward the abyss of anarchy. It has therefore caused Us great amazement and profound anguish to learn that some, as if it were to justify the iniquitous proceedings against the Church, publicly alleged a necessity of defending the new Republic. From the foregoing, it appears so evident that the alleged motive was nonexistent, that we can only conclude the struggle against the Church in Spain is not so much due to a misunderstanding of the Catholic Faith and its beneficial institutions, as of a hatred against the Lord and His Christ nourished by groups subversive to any religious and social order, as alas we have seen in Mexico and Russia.

6. But, returning to the deplorable laws regarding religious confessions and Congregations, We learned with great sorrow that therein, at the beginning, it is openly declared that the State has no official religion, thus reaffirming that separation of State from Church which was, alas, decreed in the new Spanish Constitution. We shall not delay here to repeat that it is a serious error to affirm that this separation is licit and good in itself, especially in a nation almost totally Catholic. Separation, well considered, is only the baneful consequence - as We often have declared, especially in the Encyclical Quas Primas - of laicism, or rather the apostasy of society that today feigns to alienate itself from God and therefore from the Church.

7. But if the pretension of excluding from public life God the Creator and Provident Ruler of that same society is impious and absurd for any people whatsoever, it is particularly repugnant to find this exclusion of God and Church from the life of the Spanish Nation, where the Church always and rightly has held the most important and most beneficially active part in legislation, in schools, and in all other private and public institutions. If such an attempt results in irreparable harm to the Christian conscience of the country, especially to its youth, whom they would educate without religion, and to families, profaned in the most sacred principles, no less harm befalls that same civil authority. When this loses the support that recommends it, nay sustains it, in the conscience of the people, namely the persuasion of its Divine origin, dependence and sanction, it loses at the same time its greatest power to obligate, and its highest title to be respected. That this inevitable damage follows a regime of separation is attested by not a few among the very nations that, after having introduced it in their regulations, very soon realized the necessity of remedying the error, either modifying, at least in their interpretation and application, the laws persecuting the Church, or endeavoring, in spite of separation, to come to a pacific plan of coexistence and cooperation with the Church.

8. The new Spanish legislators, indifferent to these lessons of history, wanted a form of separation hostile to the Faith professed by the great majority of citizens, - a separation so much more painful and unjust especially since it was advanced in the name of that liberty promised and assured to all without distinction. Thus they wished to subject the Church and her ministers to measures by which they sought to put her at the mercy of the civil power. Infact, while under the Constitution and successive laws all opinions, even the most erroneous, have wide fields in which to manifest themselves, the Catholic Religion alone, that of almost all of the citizens, see its teaching odiously watched, its schools and other institutions, so helpful for science and Spanish culture, restrained.

9. The very exercise of Catholic worship, in its most essential and traditional manifestations, is not exempt from limitations, since religious assistance in institutes is made dependent on the State, and religious processions are placed under the necessity of obtaining special authorization granted by the Government. Special clauses and restrictions apply even to administration of the Sacraments to the dying and funerals for the dead. Even more manifest is the contradiction regarding property. The Constitution recognizes in all citizens the legitimate faculty of possession and, as is proper in all legislation of civilized countries, guarantees safeguards for the exercise of such important rights arising from nature itself. Nevertheless, even on this point, an exception was created to the detriment of the Catholic Church, depriving her, with open injustice, of all property. No regard is paid to the wishes of those making donations in wills; no account is taken of the spiritual and holy ends connected with such properties, and no respect is shown in any way to rights long ago acquired and founded on indisputable juridical titles. All buildings, episcopal residences, parish houses, seminaries and monasteries no longer are recognized as the free property of the Catholic Church, but are declared - with words that badly hide the nature of the usurpation - public and national property.

10. Moreover, while these buildings, the legitimate property of the various ecclesiastical bodies, are by law left only to the use of the Catholic Church and her ministers in accordance with their purpose of worship, they even go so far as to subject these same buildings to taxes for their use. Thus the Catholic Church is compelled to pay taxes on what was violently wrenched from her.

11. In this manner the civil power prepared the way to render even the precarious use of her property impossible to the Catholic Church. Since she is deprived of everything - deprived of every subsidy, and hindered in all her activities - how can she pay these taxes? Nor can one say that under the law the Catholic Church has the faculty to own at least some private property, because even the reduced right is almost nullified by a principle soon afterward enunciated, that those properties may only be held in the quantity necessary for religious services. In this way the Church is compelled to submit to examination by the civil power for the fulfillment of her divine mission, and the State has constituted itself judge of what is necessary for purely spiritual functions. Therefore, there is reason to fear such judgment as being in accordance with the laic intentions of the laws and their authors.

12. The usurpation does not stop at property. Chattles, also, are declared public property and are catalogued so that nothing may escape, even vestments, statues, pictures, vases, gems and similar objects expressly and permanently destined to Catholic worship, to its splendor and to necessities directly connected with such worship. While the Church is denied the right to dispose freely of what is hers by reason of having been legitimately purchased or donated by the pious faithful, to the State only is given to the power of disposing, for another purpose and without any limitation, of sacred objects - even those which with special consecration have been withdrawn from every profane use - removing every duty of the State to compensate the Church for such deplorable waste.

13. Nor was all this sufficient to appease the anti-religious whims of the present legislators. Not even the churches were spared. Temples - splendors of art, rare monuments of glorious history and decorum which have been the pride of the nation throughout centuries - Houses of God and prayer over which the Catholic Church always had enjoyed the full right of ownership and which the Church by her magnificent title of particular merit had always preserved, embellished and adorned with loving care - even temples not a few of which were destroyed (and again We deplore it) by the impious mania of burning - were declared to property of the nation and placed under the control of the civil authorities who today rule the public destinies without any respect for the religious sentiments of the good people of Spain.

14. The condition created for the Catholic Church in Spain is, therefore, very sad. The clergy already were deprived, by an action totally foreign to the generous character of the chivalrous Spanish nation, of their incomes, thus violating a promise given in a concordatory pact and violating the strictest justice since the State, in fixing these allowances, had not done it through gratuitous concession but as indemnity for goods already taken from the Church.

15. Even Religious Congregations are now stricken in an inhuman manner by these deplorable laws. The unjust suspicion was fomented that they might exercise political activity dangerous to the safety of the State, thus stimulating a passion hostile to them with every kind of denunciation and persecution to provide an open and easy way to arrive at more serious measures. They were subjected to many inquiries, registrations and inspections which constituted troublesome forms of fiscal oppression and finally, after they were deprived of the right of teaching and exercising any other activity from which they could obtain honest sustenance, they were placed under tributary laws, though it was well-known that, deprived of everything, they will not be able to pay taxes, which is another veiled manner of rendering their existence impossible. Actually, with such legislation, not only the Religious but the whole Spanish people have been stricken, because there have been rendered impossible those great works of charity and of beneficence for the aid of the poor which always formed the magnificent glory of the Religious Congregations and the Catholic Spain.

16. Nevertheless, in the painful and straightened circumstances in which the secular and regular clergy find themselves in Spain, the thought comforts Us that the generous Spanish people, even in the present economic crisis, will worthily know how to repair such a pitiful situation, lessening the burden of real poverty which has overwhelmed their priests, so that, with renewed energy, they can provide for Divine Worship and pastoral ministry.

17. But if these grave injustices sadden Us, and with Us, you, Venerable Brothers, Beloved Sons, We feel even more strongly the offense committed against Divine Majesty. It was an expression of a soul deeply hostile to God and the Catholic Religion, to have disbanded the Religious Orders that had taken a vow of obedience to an authority different from the legitimate authority of the State. In this way means was ought to do away with the Society of Jesus - which can well glory in being one of the soundest auxiliaries of the Chair of Peter - with the hope, perhaps, of then being able with less difficulty to overthrow in the near future, the Christian Faith and morale in the heart of the Spanish Nation, which gave to the Church of God the grand and glorious figure of Ignatius Loyola.

18. In this manner they wished to strike fully, as We already have publicly declared, at the very Supreme Authority of the Catholic Church. They did not dare name explicitly the person of the Roman Pontiff, but, in fact, they have defined as extraneous to the Spanish Nation the authority of the Vicar of Christ, as if the authority of the Roman Pontiff, conferred by Jesus, Himself, could be called extraneous to any part of the world whatsoever; as if the recognition of the Divine Authority of Christ can minimize legitimate human authority; as if the spiritual and supernatural power could be in contrast with that of the State - a contrast that cannot exist except through the malice of those who desire and want it because they know that without the Shepherd little sheep would go astray and more easily become the prey of false shepherds.

19. If the offense inflicted on the authority of the Vicar of Christ deeply wounds Our paternal heart, never did We think for a moment it could even in the smallest way shake the traditional devotion of the Spanish people to the Chair of Peter. Rather, as has always been taught by experience and history, the more the enemies of the Church seek to alienate people from the Vicar of Christ, the more affectionately the latter, through the providential disposition of God, Who knows how to bring good out of evil, draw closer to him, proclaiming that from him alone is radiated that light which illuminates the way darkened by so many perturbations, and that from him alone, as from Christ, resounds the words of eternal life.

20. Nor were they satisfied when with the recent law they so much raged against the great and meritorious Society of Jesus; they wished to give another and very serious blow to all Religious Orders and Congregations by forbidding them to teach. Thus was accomplished a work of deplorable ingratitude and clear injustice. In fact, the liberty which is granted to all to exercise the right to teach is taken from one class of citizens guilty only of having embraced a life of renunciation and perfection. Did they perhaps wish to inflict upon the Religious, who have left and sacrificed everything to dedicate themselves only to teaching and the education of the young as an apostolic mission, the stigma of incapacity or inferiority in the teaching field? Nevertheless, experience has demonstrated with what care, with what competence, the Religious always have fulfilled their duty, with what magnificent results for the instruction of intellect as well as the education of heart they have crowned their patient labor. It is luminously proved by the number of persons, truly famous in all fields of human science and at the same time exemplary Catholics, who came forth from the schools of the Religious. It is shown by the great advances made in Spain by such schools, and by the record of students. Finally, it is confirmed by the confidence which they have enjoyed from parents, who, having received from God the right and duty of educating their own children, have also the sacrosanct liberty of choosing those who must efficaciously cooperate in their education.

21. But this very serious act with regard to Religious Orders and Congregations was not enough. Indisputable rights of property also were oppressed. The free will of founders and benefactors was openly violated through the seizure of buildings with the object of creating lay schools that are Godless, although the generous donors had stipulated that strictly Catholic education should be imparted.

22. From all this, alas, appears too clearly the purpose they intend to achieve with such regulations, namely that of educating new generations in a spirit of religious indifference if not anticlericalism, tearing from the young souls the traditional Catholic sentiments so deeply rooted in the good people of Spain. Thus it is sought to make laic all teaching which hitherto was inspired by religion and Christian morality.

23. In the face of a law so injurious to ecclesiastical rights and liberties, rights that We must defend and preserve integrally, We believe that it is precisely the duty of Our Apostolic Ministry to reprove and condemn it. Therefore, We solemnly protest with all Our strength against the law itself, declaring that it cannot be invoked against the inalienable rights of the Church. And We wish here to reaffirm Our lively confidence that Our beloved children of Spain, understanding the injustice and harm of these provisions will bring to bear all legitimate means which, in view of the nature of the law and of its interpretation, rest in their power to induce these same legislators to reform these dispositions which are so contrary to the rights of every citizen and so hostile to the Church, substituting other laws reconcilable with Catholic conscience.

24. Meanwhile, however, with all the soul and heart of a father and shepherd, We emphatically exhort Bishops, priests, and all those who in any way intend to dedicate themselves to the education of the young to promote more intensely,

with all their strength and by every means, religious teaching and the practice of Christian life. And this is so much more necessary since the new Spanish legislation, with the deleterious introduction of divorce, dares to profane the sanctuary of the family, thus implanting, with the attempted dissolution of domestic society, the germs of saddest ruin for civil well-being. Faced by a menace of such enormous damage, We again recommend to all Catholic Spain that laments and recriminations be put aside, and subordinating to the common welfare of Country and Religion every other ideal, all unite, disciplined for the defense of the Faith and to remove the dangers that threaten the civil welfare.

25. In a special way, We invite all the Faithful to unite in Catholic Action, which We so often have recommended and which, though not constituting a party but rather having set itself above and beyond all political parties, will serve to form the conscience of Catholics, illuminating and corroborating it in defense of the Faith against every snare.

26. Now, Venerable Brothers and Beloved Sons, We cannot conclude Our letter better than by repeating that more than the help of men We must have confidence in the indefectible assistance promised by God to His Church and in the immense goodness of the Lord toward those who love Him. Therefore, considering what has happened near you and saddened above everything else by serious offenses committed against the Divine Majesty, with the numerous violations of His sacrosanct rights and with so many transgressions of His laws, We have sent to heaven fervent prayers asking God to pardon the offenses against Him. He, Who can, may fully illumine the minds, rectify the wills, and turn the hearts of the rulers to better advice.

27. Sweet hope is entertained by Us that the supplicating voice of so many good children united to Us in prayer, above all in this Holy Year of the Redemption, will be benignly accepted by the clemency of Our Heavenly Father. In this faith, We impart with all Our heart the Apostolic Blessing and invoke on you, Venerable Brothers and Beloved Sons, and on all the Spanish Nation so dear to Us the abundance of heavenly favors.

Given at Rome, at St. Peter's, on the third day of June, 1933, in the twelfth year of Our Pontificate.

PIUS X

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